

Battistella v. Rossi et al.

[Indexed as: Battistella v. Rossi]

103 O.R. (3d) 616

2010 ONSC 5336

Ontario Superior Court of Justice,
Mulligan J.
September 27, 2010

Limitations -- Discoverability -- Plaintiff suffering pain and required to take time off work as result of motor vehicle accident -- Plaintiff claiming that she was unaware that her injuries met Insurance Act threshold until she had MRI several years later -- Plaintiff commencing action more than six years after accident but less than two years after MRI -- Genuine issue for trial existing with respect to discoverability -- Defendant's motion for summary judgment dismissed.

The plaintiff was injured in a motor vehicle accident in 1999. She complained of pain, received some physiotherapy and had to take time off work. In 2003, she [page617] had an MRI and discovered that she had a broad-based central disc protrusion at L4 and L5, severe degenerative disc disease and facet osteoarthritis. She commenced an action for damages for the injuries suffered in the motor vehicle accident more than six years after the accident, but less than two years after the MRI. She claimed that she was unaware that her injuries met the Insurance Act, R.S.O. 1990, c. I.8 threshold until she had the MRI. The defendant brought a motion for summary judgment

dismissing the action on the basis that it was not commenced within the two-year limitation period.

Held, the motion should be dismissed.

Although the plaintiff could have brought an action earlier, she did not have evidence that would assist her in satisfying the Insurance Act threshold requirements until she received the MRI. It would be unfair to require her to commence an action at a time when she could not expect to meet the threshold requirements. The receipt of the MRI could be viewed as a triggering event upon which to ground the commencement of the limitation period. There was a genuine issue for trial with respect to discoverability.

Cases referred to

Everding v. Skrijel (2010), 100 O.R. (3d) 641, [2010] O.J. No. 2534, 2010 ONCA 437, [2010] I.L.R. I-5018, 263 O.A.C. 130, 321 D.L.R. (4th) 550, revg (2009), 97 O.R. (3d) 155, [2009] O.J. No. 2307, 178 A.C.W.S. (3d) 252 (S.C.J.), apld

Other cases referred to

Aguonie v. Galion Solid Waste Material Inc. (1998), 38 O.R. (3d) 161, [1998] O.J. No. 459, 156 D.L.R. (4th) 222, 107 O.A.C. 115, 17 C.P.C. (4th) 219, 77 A.C.W.S. (3d) 520 (C.A.); Coutanche v. Napoleon Delicatessen (2004), 72 O.R. (3d) 122, [2004] O.J. No. 2746, 188 O.A.C. 15, 49 C.P.C. (5th) 34, 132 A.C.W.S. (3d) 368 (C.A.); Hino Motors Canada Ltd. v. Kell, [2010] O.J. No. 1105, 2010 ONSC 1329; Joseph v. Paramount Canada's Wonderland (2008), 90 O.R. (3d) 401, [2008] O.J. No. 2339, 2008 ONCA 469, 294 D.L.R. (4th) 141, 56 C.P.C. (6th) 14, 166 A.C.W.S. (3d) 762, 241 O.A.C. 29; New Solutions Extrusion Corp. v. Gauthier, [2010] O.J. No. 661, 2010 ONSC 1037; Peixeiro v. Haberman, [1997] 3 S.C.R. 549, [1997] S.C.J. No. 31, 151 D.L.R. (4th) 429, 217 N.R. 371, J.E. 97-1825, 103 O.A.C. 161, 46 C.C.L.I. (2d) 147, 12 C.P.C. (4th) 255, 30 M.V.R. (3d) 41, 74 A.C.W.S. (3d) 117; Safai (Litigation guardian of) v. Bruce N. Huntley Contracting Ltd., [2010] O.J. No. 3338, 2010 ONCA 545, 322 D.L.R. (4th) 1; Voisin v. Hartin, [2000] O.J. No. 5009, [2000] O.T.C. 931 (S.C.J.); Zapfe v. Barnes (2003), 66 O.R. (3d) 397, [2003] O.J. No. 2856, 230 D.L.R. (4th) 347, 174 O.A.C. 211, 35 C.P.C. (5th) 317, 39 M.P.L.R. (3d) 161, 41 M.V.R. (4th) 171,

124 A.C.W.S. (3d) 262 (C.A.)

Statutes referred to

Highway Traffic Act, R.S.O. 1990, c. H.8 [as am.]

Insurance Act, R.S.O. 1990, c. I.8 [as am.]

Rules and regulations referred to

Rules of Civil Procedure, R.R.O. 1990, Reg. 194, Rule 20

Authorities referred to

Osborne, Coulter A., Civil Justice Reform Project: Summary of Findings and Recommendations (Toronto: Ontario Ministry of the Attorney General, 2007)

MOTION for summary judgment dismissing an action. [page618]

Dave Messam, for moving party Guido Rossi.

Patrick Di Monte, for plaintiff/responding party Laura Battistella.

[1] Endorsement of MULLIGAN J.: -- The plaintiff, Laura Battistella ("Battistella"), was injured when her motor vehicle was struck by another vehicle driven by the defendant Guido Rossi ("Rossi"). On the day of the accident, she was taken to the hospital, treated and released. She commenced her action against Rossi in 2005, over six years after the accident occurred. Rossi moves for summary judgment to dismiss the action on the basis that the claim was outside the two-year limitation period as prescribed by statute. The plaintiff opposes the motion on the basis that the nature and extent of her injuries were not known until she received an MRI in 2003. She then commenced her action against this defendant and other defendants within two years of receiving her MRI results. For reasons that follow, Rossi's motion for summary judgment is dismissed.

Background Facts

[2] In response to the motion by Rossi, Battistella filed an affidavit detailing her injuries and treatments from this accident as well as subsequent accidents. The first subsequent

accident was a motor vehicle accident with the defendant Leonardo Cacioppo. Evidently this was a minor accident. The action against Cacioppo has been dismissed without costs. Battistella also tripped while at a Sears store. Sears Canada Inc. continues to be a defendant in this action but takes no position with respect to the motion for summary judgment by the defendant Rossi.

[3] Battistella was injured while driving her motor vehicle on October 9, 1999. She alleges that Rossi made an improper left turn, causing a head-on collision. She was taken by ambulance to hospital, examined and released. A few days later, she attended at a walk-in clinic and sought medical attention because she felt pain in her back, both arms, shoulders, neck and head. She received some physiotherapy and a prescription which contained aspirin notwithstanding her allergy to aspirin. As a result of that prescription and an adverse allergic reaction, she commenced an action against the treating physician at the clinic. The matter proceeded through discoveries and ultimately that action was dismissed without costs.

[4] As a result of the accident with Rossi, Battistella was off work and received some benefits from her own insurance company. She also spoke to Mr. Rossi's insurance adjuster. A few weeks later, she saw her family doctor and complained of neck [page619] pain, left shoulder pain, memory loss, left elbow pain, dizzy spells, headaches and inability to sit for long periods of time. She received pain medication and was advised to seek physiotherapy. About six months later, she returned to work as a real estate agent. However, Battistella was only able to work on a part-time basis with modified duties. Her SABS benefits terminated at that point. She saw her family doctor on several occasions in 2000, but noted in her affidavit that "the severity of my symptoms had decreased".

[5] On June 5, 2000, she was involved in a second motor vehicle accident with the defendant Cacioppo. As a result, she received some physiotherapy treatments for about four months and continued working. She saw her family doctor several times after that accident. Her doctor monitored her progress. She

last saw her doctor on October 5, 2000 and did not see her family doctor again for approximately 17 months until her accident at Sears.

The Sears Accident

[6] On March 6, 2002, Battistella tripped while shopping at a Sears store. She immediately felt a sharp pain in her back, neck, lower back and left-upper and lower extremities. She attended her family doctor and received pain medication and advice to attend physiotherapy. She continued with treatment but continued to feel pain and claimed that she suffered a severe pain attack December 23 and 24, 2002, which then subsided. She noted that on January 5, 2003, her pain started again.

[7] At the recommendation of her family doctor, she saw an orthopaedic surgeon April 17, 2003. Dr. Lithwick ordered a CT scan and advised Battistella that she suffered from a degenerative disc disease and an inflamed left-hip joint. He also gave her medication for arthritic pain.

[8] Battistella was not satisfied with the advice from her family doctor so she arranged to see an acupuncture doctor. She was referred to another specialist who ordered an MRI on November 9, 2003. Battistella received and reviewed the MRI report November 17, 2003, and it revealed that she had a broad-based central disc protrusion at L4 and L5, and severe degenerative disc disease and facet osteoarthritis.

[9] Battistella issued her statement of claim against the three named defendants on November 8, 2005, which was less than two years after receiving the MRI report.

[10] Both parties acknowledge that the applicable limitation period under the Highway Traffic Act, R.S.O. 1990, c. H.8 is two years. However, Battistella argues that, based on the discoverability principle, the limitation period only started to run against [page620] Rossi when she received and reviewed the MRI report in 2003, and her action was issued in a timely manner thereafter. Battistella further argues that the issue of discoverability cannot be determined on a motion for summary

judgment and ought to be left to the trier of fact. Rossi argues that the limitation period expired two years after the automobile accident, thus the limitation period expired in October 2001. He argues, in the alternative, that the limitation period expired two years after January 2003, a time when Battistella noted severe back pain. Therefore, in the alternative, the limitation period expired in January 2005, approximately nine months prior to Battistella's commencement of this action. Rossi also argues that, based on the expanded powers of motion judges pursuant to Rule 20 of the Rules of Civil Procedure, R.R.O. 1990, Reg. 194 ("Rule 20"), this is a matter that ought to be dealt with by the motion judge on the evidence submitted by both parties at the motion.

The Evidentiary Record

[11] Both parties filed affidavits in support of their position on the motion. It is clear that the evidentiary record now plays a significant role in enabling motion judges to weigh evidence, assess credibility and draw inferences.

[12] Rossi died several years after the accident. The affidavit in support of his position was made by Alana Abells, a lawyer for Rossi. The affidavit takes the position that the Battistella claim is outside the limitation period. As stated, in para. 12 of the affidavit:

That since the plaintiff's areas of pain and corresponding pain levels in almost all cases remained constant from the time of the October 1999 accident to the time of the November 2007 discovery, it is unclear as to the why the plaintiff did not commence an action against Rossi within the two-year limitation period, being October 2001.

And further, at para. 18:

I verily believe that there is no issue for trial given the plaintiff's breach of the limitation period and the fact that the plaintiff was well aware of her injuries as of October 9, 1999, which injuries remained constant with her until the time of her discovery in 2007.

[13] Battistella's responding affidavit documents her

injuries from the accident with Rossi and the fact that she went to the hospital by ambulance, was treated and released. Several days later, she went to a walk-in clinic because "I felt pain in my back, both arms, shoulders, neck and head." She went back to her family doctor a few days later. As she stated in her affidavit, in para. 20, "At that time, I complained to Dr. Furer of neck [page621] pain, left shoulder pain, memory loss, left elbow pain, dizzy spells, headaches and an ability to sit for prolonged periods of time. This followed with physiotherapy for about six months." On March 13, 2000, she returned to work but only on a modified part-time basis, noting in her affidavit that "I was still suffering from neck, lower back and left shoulder pain." This followed a period of physiotherapy for about six months.

[14] Following the accident with Rossi, Battistella was involved in an accident with Cacioppo. Battistella suffered minor injuries. That claim was dismissed on consent. On March 6, 2002, she had an accident at a Sears store when she tripped. That claim continues as part of this action.

[15] She continued to visit her family doctor experiencing pain, and noted in her affidavit, "By September 2002 I was in severe pain (lower back pain radiating to my left leg). These pains were constant. I had a severe pain attack December 23 and 24, 2002 and then it subsided a week later. On or about January 5, 2003 my pain started again."

[16] In November 2003, Battistella was shocked and angry when she received the MRI report which provided the following impression:

- (1) Broad-base central disc protrusion at L4-S.
- (2) Degenerative disc disease and facet osteoarthritis.

Position of the Parties

[17] Both parties acknowledge that in the circumstances of this case a two-year limitation period applied pursuant to the provisions of the Highway Traffic Act. The discoverability rule applies to this case because it determines the commencement of the limitation period: see *Coutanche v. Napoleon Delicatessen* (2004), 72 O.R. (3d) 122, [2004] O.J. No. 2746 (C.A.), at

para. 22, as Feldman and Cronk JJ.A. said in *Zapfe v. Barnes* (2003), 66 O.R. (3d) 397, [2003] O.J. No. 2856 (C.A.), at para. 33, citing *Borins J.A. in Aguonie v. Galion Solid Waste Material Inc.* (1998), 38 O.R. (3d) 161, [1998] O.J. No. 459 (C.A.), at p. 172 O.R.:

The starting point for the application of the discovery rule . . . is the time when the appellants' cause of action arose. This will define the starting date of the limitation period. It is a question of fact when the cause of action arose and when the limitation period commenced. The application of the discoverability rule is premised on the finding of these facts: when the appellants learned they had a cause of action against the respondents; or, when, through the exercise of reasonable diligence, they ought to have learned they had a cause of action against the respondents.
[page622]

[18] There are no special circumstances put forward by Battistella in this case which would give the court authority to allow an action to be commenced after the expiry of a limitation period: see *Joseph v. Paramount Canada's Wonderland* (2008), 90 O.R. (3d) 401, [2008] O.J. No. 2339, 2008 ONCA 469, at para. 28.

[19] The issue for the court on this motion was captured in the responding party's factum, at para. 97:

The court is therefore given the task to determine when Battistella came to a reasonable conclusion that at some point, she had a cause of action, taking into effect that she did not have a cause of action until she met the threshold.

[20] Rossi submits that the revisions to Rule 20 provide summary motions courts with additional tools to weigh evidence, evaluate creditability and draw inferences from evidence. In his factum and submissions, Rossi made reference to recent court decisions interpreting the revisions to Rule 20.

[21] Since the revisions of Rule 20 came into effect January 1, 2010, there have been a number of judicial decisions

interpreting and applying the expanded jurisdiction of motion judges on motion for summary judgment. In *Hino Motors Canada Ltd. v. Kell*, [2010] O.J. No. 1105, 2010 ONSC 1329, Karakatsanis J. provided, at para. 6:

The change in the Rules from "no genuine issue for trial" to "no genuine issue requiring a trial" together with the explicit powers of the motions judge to make evidentiary determinations, permits a more meaningful analytical review of the paper record and expressly overrules jurisprudence that restricted motions judges from making evidentiary determinations.

[22] The changes to Rule 20 are rooted in the Civil Justice Reform Project: Summary of Findings and Recommendations (Toronto: Ontario Ministry of the Attorney General, 2007) chaired by the Honourable Coulter A. Osborne. The report stated, at p. 33:

There was a general agreement that Rule 20 is not working as intended. Both lawyers and the Superior Court judges said that the Court of Appeal's view of the scope of motions judges' authority is too narrow. Whether this view is correct can be debated. Whether it exists is beyond debate.

[23] Although the new rule provides motion judges with additional tools, it is clear that the test for summary judgment remains unchanged. As Karakatsanis J. stated in *New Solutions Extrusion Corp. v. Gauthier*, [2010] O.J. No. 661, 2010 ONSC 1037, at paras. 9-10:

The test for summary judgment -- whether there is a genuine issue of material fact that requires a trial for its resolution as first articulated in *Irving Ungerman Ltd. v. Galanis* (1991) 4 O.R. (3d) 545 (C.A.) -- has not [page623] changed . . . Simply put, the test remains largely the same as it was under *Irving Ungerman* where the issue was whether the evidence "requires a trial". The new Rule 20.04 provides the judge with more tools to determine if this test is met.

[24] Both counsel referred the court to the Supreme Court of

Canada decision *Peixeiro v. Haberman*, [1997] 3 S.C.R. 549, [1997] S.C.J. No. 31. Mr. Peixeiro was involved in a motor vehicle accident and suffered what was thought to be "soft tissue injuries". More than two years after the accident, he had a CT scan which indicated a disc protrusion in his spine at L5-S1. The Supreme Court agreed with the Ontario Court of Appeal, which determined that the limitation period began to run from the time of the CT scan, not the date of the original accident. The court reviewed the discoverability principle with respect to Ontario's no-fault automobile-accident scheme in place at the time. On the facts before it, the court found, at para. 43:

As a matter of law, I do not think that the existence of a cause of action was reasonably discoverable until the respondents learned that Mr. Peixero had a herniated disc. However, the court noted, at para. 18:

It was conceded that at common law ignorance of or mistake as to the extent of damages does not delay time under a limitation period. The authorities are clear that the exact extent of the loss of the plaintiff need not be known for the cause of action to accrue.

[25] At para. 34, the court reviewed the rationale for limitation periods:

There are three, and they may be described as the certainty, evidentiary, and diligence rationales . . .

Statutes of limitation have long been said to be statutes of repose . . . The reasoning is straightforward enough. There comes a time, it is said, when a potential defendant should be secure in his reasonable expectation that he will not be held to account for ancient obligations . . .

The second rationale is evidentiary and concerns the desire to foreclose claims based on stale evidence. Once the limitation period has elapsed, the potential defendant should no longer be concerned their preservation of evidence relevant to the claim . . .

Finally, the plaintiffs are expected to act diligently and not "sleep on their rights"; statutes of limitation are incentive for plaintiffs to bring suit in a timely fashion.

[26] Peixeiro was referred to recently by the Ontario Court of Appeal in *Safai (Litigation guardian of) v. Bruce N. Huntley Contracting Ltd.*, [2010] O.J. No. 3338, 2010 ONCA 545. As Armstrong J.A. stated, at para. 14: [page624]

The discovery rule has been developed and discussed in a number of cases in this court, other provincial appellate courts and the Supreme Court of Canada since the mid 1980s . . . In *Peixeiro v. Haberman* [1997] 3 S.C.R. 549, Major J. writing for the court, made it clear at para. 36 that the discoverability rule is a rule of general application to be employed "to avoid the injustice of precluding an action before the person is able to raise it".

[27] Rossi relies on the motion judge's ruling in *Everding v. Skrijel* (2009), 97 O.R. (3d) 155, [2009] O.J. No. 2307 (S.C.J.). However, that decision was overturned by the Ontario Court of Appeal in a decision released on June 15, 2010: see *Everding v. Skrijel* (2010), 100 O.R. (3d) 641, [2010] O.J. No. 2534, 2010 ONCA 437. On the facts of that case, the plaintiff commenced an action more than seven years after the accident on the basis that it was only after she received an MRI that she had objective evidence of ongoing injury. It is apparent from the facts of that case that the plaintiff knew that she had suffered an injury from a motor vehicle accident but felt that it did not exceed the threshold for damages applicable at the time. The motion judge defined the issue before him as follows, at para. 8:

. . . I am asked to conclude that the action was statute-barred long before the claim was issued, because, by the end of May 2004, the Plaintiff knew or ought to have known that she sustained an injury that appeared to be permanent and serious and that it appeared that she had a claim which could cross the threshold.

(Emphasis in original)

[28] The motion judge granted the motion for summary judgment dismissing the plaintiff's claim and stated, at para. 30:

The plaintiff cannot sit back and await proof to a certainty of a higher-than-threshold injury before commencing her action.

[29] However, the Court of Appeal came to a different conclusion. Feldman J.A. made reference to the Supreme Court of Canada decision in *Peixeiro, supra*, and adopted the policy considerations as articulated by Gillese J. in *Voisin v. Hartin*, [2000] O.J. No. 5009, [2000] O.T.C. 931 (S.C.J.), at para. 32:

The rationale underlying the discoverability principle is that the law ought not to preclude an action before a person is able to sue on it. In my view, this rationale requires me to take into account the effect of the \$10,000 [now \$15,000] requirement. It would be fundamentally unfair to require the plaintiff to bring an action in which he could not expect to recover anything because his claim could not surpass the \$10,000 exemption.

[30] In adopting this approach, Feldman J.A. stated, at para. 11:

I agree with this analysis. Clearly it is not the policy of the law or the intent of the limitations provisions to require people to commence actions before they know that they have a substantial chance to succeed in the recovering a judgment for damages. These provisions of the Insurance Act [page625] were enacted as part of a scheme that provides compensation with no-fault benefits for injuries that are not considered to be serious or permanent, but allows actions to proceed where the injuries are sufficiently significant that a substantial monetary award is likely to be recovered. Consequently, the test for the discoverability of the existence of such a claim for limitation purposes must be in accordance with this same policy.

[31] In the result, the court determined that the discoverability issue was a genuine issue for trial. The appeal was allowed, setting aside the order granting summary judgment dismissing the action.

Conclusion

[32] There is no question that Battistella had the right to sue Rossi after the motor vehicle accident in 1999. She reported pain, was off work for a time, had physiotherapy and then returned to work with modified duties. However, the issue on this motion is the commencement date of the limitation period given the applicability of the discoverability rule. Although she could have brought an action earlier, it is clear that she did not have evidence that would assist her in satisfying the threshold requirement until she received the MRI. Her right to sue was limited by the threshold provisions of the Insurance Act, R.S.O. 1990, c. I.8 and it would be unfair to require her to start an action at a time when she could not expect to meet the threshold requirements. Clearly, the receipt of the MRI could be viewed as a triggering event upon which to ground the commencement of the limitation period. Her action was commenced within the two-year period following the receipt of the MRI. On the facts of this case and with the guidance from Everding, supra, I am satisfied that there is a genuine issue for trial on the issue of discoverability. This issue ought to be left to the trial judge. In the result, the defendant's motion for summary judgment is dismissed.

Costs

[33] If the parties are unable to agree on costs, I will receive brief written cost submissions from the responding party within 20 days of the release of this judgment with reply cost submissions from the moving party within ten days thereafter.

Motion dismissed.